

HOUSE No. 4834

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, December 22, 2025.

The committee on Public Health, to whom was referred the petition (accompanied by bill, House, No. 2497) of Paul McMurtry relative to medical health and fitness facilities, reports recommending that the accompanying bill (House, No. 4834) ought to pass [Representative Thurber of Somerset dissents].

For the committee,

MARJORIE C. DECKER.

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In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to medical health and fitness facilities.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 111 of the General Laws is hereby amended by inserting after
2 section 248 the following section:

3 Section 249. (a) As used in this section, the following words shall have the following
4 meaning unless the context clearly requires otherwise – “Medical Health and Fitness Facilities”
5 (“MHFF”) are defined as any wellness facility that has created protocols and operating
6 procedures which all such facilities will need to achieve and maintain in order to be recognized
7 as such a facility by the department.

8 (b) Medical Health and Fitness Facilities as recognized by the department must adhere to
9 and achieve the following safety standards and facility specifications and requirements:

10 1. Medical Application Standards: MHFF facilities must maintain, adhere to and
11 provide for all of the following medical safeguards and medical service programs:

12 a. Written policies and procedures regarding member/guest safety;

- 13 b. Emergency response procedures;
- 14 c. Individualized health and mental health assessments;
- 15 d. Disease management and prevention programs;
- 16 e. Lifestyle change/health-risk and chronic pain reduction programs;
- 17 f. Physical therapy, post-operative/injury;
- 18 g. Physical therapy continued care program;
- 19 h. Implementation and maintenance of a Medical Advisory Board; and
- 20 i. A mental health referral program.

21 (c) Medical Advisory Board (“MAB”) is group of healthcare professionals headed by a
22 Medical Director that meet on at least a quarterly basis for the purpose of reviewing and
23 providing professional oversight for all aforementioned medical applications: The members of
24 the MAB should be recognized experts in their field. Their combined experience and valued
25 insights should direct the facility in all efforts to enhance all existing wellness programs as well
26 as maintain and improve the safety protocols for current participants. The MAB also plays a
27 large part in determining what new services and or lifestyle improvement programs may be
28 needed or valuable to neighboring communities and the client/patient community.

29 i. Medical Director

30 i. The Medical Director is a licensed medical physician who sits on the
31 Medical Advisory Board and oversees, directs and reviews all communications with the MAB.

32 ii. The Medical Director is responsible for the safe and appropriate
33 application of all medical programs within the facility.

34 2. Staffing Requirements and Qualifications

35 a. All MHFF facilities are required to employ personnel in the following full-time
36 positions with qualifications listed.

37 b. Fitness Director: must have a minimum of an Exercise Physiology or Health
38 Science Degree or the equivalent.

39 c. Certified Pool Operator: Facilities with pools and/or hot tubs and Jacuzzi must
40 have a certified pool operator.

41 d. Operations Manager: Must have a BS in Facility and or Operations Management
42 with 5+ years' experience.

43 e. Fitness Manager on Duty ("FMOD"): all facilities must employ a fitness manager
44 on duty at all times of operation.

45 f. Medical Director: All facilities must have a licensed medical physician to oversee
46 the MAB. The Medical Director will be responsible for overseeing the medical and behavioral
47 change programs within each facility. The Medical Director will work with the MAB and facility
48 management in order to coordinate various interdisciplinary teams to execute the facility's
49 medical and wellness policies, systems and agenda.

50 3. Cleaning and Hygiene Procedures: MHFF facilities must maintain and enforce the
51 following cleaning protocols in accordance with the Massachusetts Safety and Standards
52 Checklist

a. Provide ample and sufficient sanitation wipes easily accessed for members and staff to clean equipment before and after each individual use.

b. Provide ample and sufficient hand sanitation stations easily accessed for members and staff to consistently sanitize their hands.

c. Staff is required to spray down equipment with EPA approved disinfectant at scheduled times throughout the day to maintain optimal safety and cleanliness. Staff must log and track cleaning times.

d. Staff will disinfect high touch, high use areas consistently throughout the day, with EPA approved N list cleaning product and log and track times.

e. Increase cleaning staff to maintain and enable consistent, thorough and continuous facility sanitization.

4. Air Quality and Control

a. MHFF facilities will be required to purchase, install and continuously operate non-thermal plasma self-contained electronic air and surface decontamination unit(s)

b. Said unit(s) shall have the capacity to eradicate bacteria, viruses, mold and odor at an average reduction rate of 90% in the air and 95% on surfaces in large occupied spaces by creating oxidized molecules from ambient air using non-thermal plasma technology

c. Said unit(s) will not use chemicals in any aspect of operation and will comply with USDA National Organic Standards (7 CFR Part 205)

d. Said unit(s) shall be powered by standard 120 volt outlet

- e. Said unit(s) shall have no effect on temperature or humidity of the facility
- f. Said unit(s) shall offer continuous 24 hour treatment
- g. Said unit(s) can be calibrated for different operations cycles
- h. Said unit(s) shall be compliant with OSHA safety and air quality regulations.

5. Safety Standards and Required Protocols: MHFF facilities will be required to implement and maintain the following protocols:

- a. Facilities must maintain an updated member contact process e-mail or cell phone
- b. Signs must be posted conspicuously throughout required spaces communicating safety regulations and requirements for said spaces.
- c. All new members are required to fill out a detailed health check form
- d. Automatic External Defibrillators (AEDs) are required; one unit for every 75,000 sq. ft. to ensure prompt and timely application.
- e. All staff must be trained in CPR and AED use
- f. All staff must have basic lifesaving skill certification
- g. Facility must have and train all employees in an emergency action plan for the following:
 - i. Fire
 - ii. Health emergency

- 91 iii. Active shooter
- 92 iv. Positive COVID test
- 93 v. Aquatic emergency
- 94 h. A facility must track and document training times and trained personnel.

95 SECTION 2. The department of public health shall produce an application and any
96 necessary regulations. The department, within 150 days of receipt of the Medical Health and
97 Fitness Facility application pursuant to this act, render a final decision denying or granting a
98 certificate. The department shall grant a facility a certificate to operate as a Medical Health and
99 Fitness Facility pursuant to this act if, upon receipt of the application, if the department finds
100 that: (i) the granting of such certificate would be consistent with the best interests of the public
101 health, welfare or safety; and (ii) the facility is in compliance with the requirements of this act
102 and applicable regulations. A certification shall last for a period of 24 months from the date of
103 receipt.